

solved (*d*), or there has been a judicial separation (*e*), [or a protection order (*f*),] the *chose en action*, though it accrued in right before the dissolution of marriage or the separation, [or protection order] is payable to the wife just as if the husband had previously died.

[**Protection order.**—And the *feme's* right of disposition extends, in the case of a *judicial separation or protection order in case of desertion*, to any property to which she was entitled in remainder or reversion at the date of the decree or of the desertion; but in the case of a protection order on the ground of assault the order is to have the same effect in all respects as a decree for separation on the ground of cruelty, and the protection will only commence as at the date of the order (*g*). On the resumption of cohabitation the property belongs to the *feme* for her separate estate (*h*).]

10. **Right of surviving trustee to have another trustee appointed.**—If a *surviving* trustee be placed in an *embarrassing* situation as regards the distribution or management of the fund, it is *said* that he has a right to ask for the appointment of a new trustee to assist him by his counsel (*i*).

11. **Advice of counsel.**—If through any misapprehension on the part of the trustee, *or the ill-advice [*347] of his counsel, the trust money finds its way into a channel not authorised by the terms of the trust, the trustee will be held personally responsible for the misapplication to the parties who can establish a better claim. "I have no doubt," said Lord Redesdale, upon one occasion, "the executors *meant* to act fairly and honestly, but they were misadvised; and the Court must proceed, not upon the improper advice under which an executor may have acted, but upon

(*d*) *Wells v. Malbon*, 31 Beav. 48; *Wilkinson v. Gibson*, 4 L. R. Eq. 162; and see *Fitzgerald v. Chapman*, 1 Ch. D. 563.

(*e*) *Johnson v. Lander*, 7 L. R. Eq. 228.

[(*f*) 20 & 21 Vict. c. 85; ss. 21, 25; 21 & 22 Vict. c. 108, s. 8; 41 Vict. c. 19, s. 4; *Re Coward and Adams*, Purchase, 20 L. R. Eq. 179; *Nicholson v. Drury Buildings Estate Company*, 7

Ch. D. 48; *Norton v. Molloy*, 7 L. R. Ir. 287, under the corresponding Act relating to Ireland, 28 Vict. c. 43.]

[(*g*) See the statutes above referred to, note (*f*).]

[(*h*) *Re Emery's Trusts*, 50 L. T. N. S. 197; 32 W. R. 357; 20 & 21 Vict. c. 85, s. 25.]

(*i*) *Livesay v. O'Hara*, 14 Ir. Ch. Rep. 12.